

Forest Land- Gadchiroli.

Diversion of 4.9 ha forest land under Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980 in favour of General Hospital Gadchiroli for construction of 430 Bedded Government Hospital and Post Graduate Courses Buildings in Village Devapur (Rith) in Gadchiroli Taluka in Gadchiroli District in the State of Maharashtra.

**Government of Maharashtra
Revenue and Forest Department
Government Order No.: FLD-36A26/C.R.147/F-10
Mantralaya, Mumbai-400 032
Date:- 05.06.2026**

Reference:-

Additional Principal Chief Conservator of Forests & Nodal Officer, M.S., Nagpur
Letter No. Desk-17/FCA-S1/PID-565934/Gadchiroli/367, Dt.18.05.2026.

Preamble:-

Additional Principal Chief Conservator of Forests & Nodal Officer, Maharashtra State, Nagpur has submitted proposal for diversion of 4.9 ha forest land under Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980 in favour of General Hospital Gadchiroli for construction of 430 Bedded Government Hospital and Post Graduate Courses Buildings in Village Devapur (Rith) at Compt. No. 170, Survey No. 98 & 100 in Gadchiroli Taluka in Gadchiroli District in the State of Maharashtra.

Order:-

In exercise of powers under general approval given by MoEF&CC, Govt. of India vide Handbook of Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980 Guidelines-2023, Chapter 4 (para-4.1), Government of Maharashtra is pleased to grant 'In-Principle' approval to the diversion of 4.90 ha. forest land for construction of 430 Bedded Government Hospital and Post Graduate Courses Buildings in Village Devapur (Rith) at Compt. No. 170, Survey No. 98 & 100 in Gadchiroli Taluka in Gadchiroli District in the State of Maharashtra.

The details of Forest Land proposed for diversion are as under:-

Sl. No.	Name of Building	Village	Compt. No.	Survey No.	Length in m.	Width in m.	Area in sq. m.	Area in ha.	Legal Status
1	Hospital Building - 1	Devapur (Rith)	170	98,100	53.2448	39.4217	2099.00	0.2099	PF
2	Hospital Building - 2			98,100	61.2767	38.3343	2349.00	0.2349	
3	Girls Hostel -300 Capacity Hostel double seated with Dining and kitchen			100	67.0538	52.6741	3532.00	0.3532	

4	Director Residence + Servant Quarter		100	47.7429	15.7301	751.00	0.0751	
5	Mortuary / Autopsy		98, 100	48.8623	27.8538	1361.00	0.1361	
6	Gas Plant		98, 100	56.6028	35.7226	2022.00	0.2022	
7	Substation		98	39.0604	37.4804	1464.00	0.1464	
8	UG Tank		100	22.6891	11.9000	270.00	0.0270	
9	AC Plant		100	29.5139	14.4000	425.00	0.0425	
10	Dharmshala		98, 100	68.3744	34.0917	2331.00	0.2331	
11	ETP		100	18.5556	9.0000	167.00	0.0167	
12	Auditorium		100	54.4959	26.9011	1466.00	0.1466	
13	PG Courses Parking/OS		100	82.0619	25.0299	2054.00	0.2054	
14	Junior & Senior Residence		100	22.1596	11.1013	246.00	0.0246	
15	Road (15.00 W)		98, 100	164.2000	15.0000	2463.00	0.2463	
16	Road (12.00 W)		98, 100	869.0833	12.0000	10429.00	1.0429	
17	Road (6.00 W) Pathway		100	54.3333	6.0000	326.00	0.0326	
18	Parking & Open Space		98, 100	225.9051	67.4841	15245.00	1.5245	
Total							4.9000	

2. This 'In-Principle' approval is subject to the following conditions-

- 1) The legal status of the land shall remain unchanged.
- 2) User shall obtain wildlife clearance, prior to commencement of work.
- 3) On perusal of KML, it is seen that about 70 percent of the area proposed for Compensatory Afforestation is covered with trees. As such, the User Agency will propose other degraded forest lands for Compensatory Afforestation, along with Stage-I compliance
- 4) Deputy Conservator of Forests, Gadchiroli shall submit certificate regarding tree cutting, along with Stage-I compliance.
- 5) The User Agency will submit the Administrative & Technical Approval of the proposal, along with Stage-I Compliance.
- 6) The demarcation of the proposed forest area shall be carried out at suitable places as per the direction of the DCF concerned at the cost of User Agency.
- 7) **Compensatory Afforestation:-**
 - a) Compensatory afforestation shall be taken up by the Forest Department over 4.90 ha. non-forest land that has been given by the District Collector, Gadchiroli in Village-Sonsari, Taluka-Kurkheda, District-Gadchiroli in Survey No.216/1/B at the cost of the User Agency;

- b) The User Agency shall transfer the cost of raising and maintaining the compensatory afforestation, at the current wage rate, to the State Forest Department. The CA scheme may include afforestation of indigenous species with appropriate provision for anticipated cost increase for works scheduled for subsequent years;

8) Net Present Value:-

- a) The Forest Department shall charge the Net Present Value (NPV) for the 4.9 ha. Forest land to be diverted under this proposal from the User Agency as per the orders of the Hon'ble Supreme Court of India dated 30/10/2002, 01/08/2003, 28/03/2008, 24/04/2008 and 09/05/2008 in IA No.566 in WP (C) No.202/1995 and as per the guidelines issued by the Ministry vide letters No.5-1/1998-FC (Pt.II), dated 18/09/2003 as well as letter No.5-2/2006-FC, dated 03/10/2006 and 5-3/2007-FC, dated 05/02/2009 & File No.5-3/2011-FC(Vol-I), Dated 06/01/2022 in this regard.
- b) Additional amount of the NPV of the diverted forest land, if any, becoming due after finalization of the same by the Hon'ble Supreme Court of India on receipt of the report from the Expert Committee, shall be charged from the User Agency. The User Agency shall furnish an undertaking to this effect.
- 9) The non-forest land identified for raising compensatory afforestation shall be transferred and mutated in favour of the State Forest Department before issue of the 'Final' approval under the Adhiniyam:
- 10) The non-forest land transferred and mutated in favour of the State Forest Department or the revenue forest land, as the case may be, shall be notified by the State Government as Protected Forests under section 29 of the Indian Forest Act, 1927 or under the relevant section(s) of the local Forest Act, before issue of the 'Final' approval under the Adhiniyam. The Nodal Officer shall report compliance in this regard along with a copy of the original notification declaring the non-forest land as PF, along with compliance of 'in-principle' approval:
- 11) To improve the Forest / Tree cover and to reduce pollution in the State, as mandate in National Forest Policy, 1988 and Environmental (Protection) Act, 1986 respectively, the User Agency with involvement of Joint Forest Management Committees (JFMC's) and in consultation with local DCF shall raise at least 5,000 seedlings of forestry species along with bamboo, fruit bearing, medicinal, ornamental and indigenous/local for 10 years. At least 50% of seedlings shall be planted by User Agency in the vicinity of project area including forest area and remaining 50% of seedling shall be distributed among villagers as per choice of villagers. The concerned JFMC's shall maintain record of plantation / seedling distribution to villagers.
- 12) All the funds received from the User Agency under the project shall be transferred/ deposited to CAMPA fund only through e-portal (<https://parivehs.nic.in>);
- 13) The complete compliance of the FRA, 2006 shall be ensured by way of prescribed certificate from the concerned District Collector.
- 14) No labour camp shall be established on the forest land and the User Agency shall provide firewood preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;

- 15) The User Agency shall ensure that because of this project, no damage is caused to the wildlife available in the area;
- 16) The user agency shall explore the possibility of translocation of maximum number of trees identified to be felled and shall ensure that any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department;
- 17) The user agency in consultation with the concerned Deputy Conservator of forest shall create and maintain alternate habitat/home for the avifauna, whose nesting trees are to be cleared in this project. Bird's nests artificially made out of eco-friendly material shall be used in the area, including forest area and human settlements, adjoining the forest area being diverted for the project;
- 18) The total forest area utilized for this project shall not exceed 4.90 ha. and the forest area diverted shall not be used for any purpose other than those shown in the diversion proposal. The User Agency shall furnish an undertaking to this effect;
- 19) The cost of felling of trees shall be deposited by the User Agency with the State Forest Department;
- 20) User Agency shall obtain Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if applicable;
- 21) Sufficient firewood, preferably the alternate fuel, shall be provided by the User Agency to the labourers after purchasing the same from the State Forest Department or the Forest development Corporation or any other legal source of alternate fuel;
- 22) The User Agency shall ensure compliance to all acts, rules, regulations and guidelines of the Ministry for the time being in force, as applicable to the subject project;
- 23) The layout plan of the proposal shall not be changed without prior approval of State Government (Forest Department).
- 24) The period of diversion under this approval shall be co-terminus with the period of lease to be granted in favour of the user agency or the project life, whichever is less.
- 25) The forest land shall not be used for any purpose other than that specified in the project proposal.
- 26) The forest land proposed to be diverted shall under no circumstances be transferred to any other agencies, department or person without prior approval of the State and Central Government.
- 27) This sanction is subject to the final clearance by the competent authorities for the project.
- 28) All other conditions as may be mandatory under relevant Acts, Rules and Guidelines shall be complied by the User Agency.
- 29) Violation of any of these conditions will amount to violation of Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980 and action would be taken as per the provision of Adhiniyam and rules / guidelines issued there under;

30) Any other condition that the Ministry of Environment, Forest & Climate Change may stipulate from time to time in the interest of conservation, protection and development of forests & wildlife.

31) Any breach of the conditions by the User Agency will be treated as violation of the provisions of the Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980.

32) The compliance report shall be uploaded on e-portal (<https://parivesh.nic.in/>).

3. This Government Order is available at the Government of Maharashtra's website www.maharashtra.gov.in with reference No. 202606051640128819. This Order has been signed digitally.

By order and in the name of the Governor of Maharashtra.

(Sanjay Jadhav)

Under Secretary to the Government of Maharashtra

Copy to:-

1. Secretary, Ministry of Environment, Forests & Climate Change, Government of India, New Delhi
2. Principal Chief Conservator of Forests (Head of Forest Force), Maharashtra State, Nagpur.
3. Deputy Director General of Forest (Central), Integrated Regional Office, Ministry of Environment, Forests & Climate Change, Government of India, Nagpur.
4. Additional Principal Chief Conservator of Forests & Nodal Officer, M.S., Nagpur
5. Additional Principal Chief Conservator of Forests & CEO (Maha-CAMPA), M.S., Nagpur
6. Additional Principal Chief Conservator of Forests (Conservation), M.S., Nagpur
7. Collector, Gadchiroli.
8. Chief Executive Officer, Zilha Parishad, Gadchiroli.
9. Chief Conservator of Forests (T), Gadchiroli.
10. Deputy Conservator of Forests, Gadchiroli.
11. General Hospital Gadchiroli
12. Select File (F-10)